



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

Exercise I: Sources and Interpretation of Constitutional Law

Dr. Gentiana Imeri, 20 February 2026

Sources of Constitutional Law

- Federal Constitution of the Swiss Confederation of 18 April 1999
- Public International Law
- Federal Acts
- Customary law, for example unwritten principles such as good faith
- Case law of the Federal Supreme Court plays a significant role, although it is not a formal source of constitutional law

Sources of Constitutional Law

- What is a constitution?
 - Set of fundamental principles and rules according to which a state is governed
 - This set of basic legal principles defines the state's
 - Nature
 - Function
 - Organization

Sources of Constitutional Law

- The Federal Constitution of the Swiss Confederation of 18 April 1999
 - Formal sense: all legal provisions enacted in the special enactment procedure of the constitution
 - Substantive sense: all essential legal principles concerning the nature of the state and its relation to individuals, e.g. rules on the organization and powers of the highest state authorities, fundamental rights, competencies of the federal entities in a federal state
- Other examples: USA, UK
- Flexible vs. rigid constitutions?

Sources of Constitutional Law

- Sources of Public International Law:

Article 38

1. The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:
 - a. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;
 - b. international custom, as evidence of a general practice accepted as law;
 - c. the general principles of law recognized by civilized nations;
 - d. subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.
2. This provision shall not prejudice the power of the Court to decide a case *ex aequo et bono*, if the parties agree thereto.

Sources of Constitutional Law

- Sources of Public International Law:
 - International conventions and treaties: e.g. ECHR, UN Human Rights Treaties => applicable and binding after states' ratification
 - International custom/customary international law: unwritten principles
 - Continuous and coherent practice
 - *Opinio iuris* (the belief that the practice is a legal obligation)
 - A lacuna in the written law
- vital rules of customary international law => opinion iuris => ius cogens => erga omnes/inter omnes effect*
- => What examples of customary international law/ius cogens do you know?**

Sources of Constitutional Law

- Examples Customary International Law:
 - prohibition of the execution of offenders under the age of 18 years at the time of their crime
 - immunity of visiting foreign heads of states
- Examples of ius cogens:
 - Prohibition of torture
 - Prohibitions of crimes against humanity
 - Prohibition of genocide
 - Prohibition of human trafficking
 - Prohibition of slavery

Sources of Constitutional Law

In 2013, Switzerland deported a Tamil asylum seeker to Sri Lanka where he was promptly arrested and severely mistreated. An international court found that two principles of ius cogens were violated. Which two principles of ius cogens were violated by the actions of Switzerland and/or Sri Lanka?

- Non-refoulment principle
- Prohibition of torture

Sources of Constitutional Law

- Sources of Public International Law:
 - International conventions and treaties: e.g. ECHR, UN Human Rights Treaties => applicable and binding after states' ratification
 - International custom/customary international law: unwritten principles
 - Continuous and coherent practice
 - *Opinio iuris* (the belief that the practice is a legal obligation)
 - A lacuna in the written law

vital rules of customary international law => opinion iuris => ius cogens => erga omnes/inter omnes effect (e.g. non-refoulment principle)
 - General principles of law recognized by civilized nations (principles of fairness and justice): good faith, impartiality of judges etc.
 - Judicial decisions and legal scholarship

Sources of Constitutional Law

- Federal Constitution of the Swiss Confederation of 18 April 1999
- Public International Law
- Federal Acts
- Customary law, for example unwritten principles such as good faith
- Case law of the Federal Supreme Court plays a significant role, although it is not a formal source of constitutional law

Sources of Constitutional Law

- Federal Acts/Statutes: cover matters of constitutional importance, e.g. citizenship, political rights, activities of federal authorities
 - Federal Act of 20 June 2014 on Swiss Citizenship (SCA)
 - Federal Act of 17 December 1976 on Political Rights (PRA)
 - Federal Act of 13 December 2002 on the Federal Assembly (ParlA)
 - Organization of the Government and the Administration (GAOA)
 - Federal Act of 17 June 2005 on the Federal Supreme Court (FSCA), SR 173.110

Sources of Constitutional Law

- Federal Constitution of the Swiss Confederation of 18 April 1999
- Public International Law
- Federal Acts
- Customary law, for example unwritten principles such as good faith
- Case law of the Federal Supreme Court plays a significant role, although it is not a formal source of constitutional law

Sources of Constitutional Law

- Case law of the Federal Supreme Court plays a significant role, although it is not a formal source of constitutional law
 - Only binding upon the court whose decision has been overruled; not binding upon other courts (even those of the Federal Supreme Court) => different in the Common Law System
 - Important for the development of the constitutional law:
 - The court might first acknowledge unwritten fundamental rights and if it does so regularly, these rights might later be introduced into the constitution => e.g. Personal liberty, freedom of opinion, freedom of assembly
 - The court might derive other rights from constitutional provisions, for example, guarantee of equality before the law => fundamental procedural rights (e.g. the right to legal assistance for people who lack the necessary means)

Constitutional Interpretation

- Methods of constitutional interpretation
 - Grammatical approach: Focuses on the ordinary use of language. It's the starting point of every interpretation.
 - Systematic approach: A norm should be interpreted in light of the systematic context.
 - Historical approach: The aim is to establish the meaning of the norm at the time of its creation (identify the intent of the drafters and the meaning civil society at that time attached to the norm)
 - Teleological approach: It searches for the purpose of a norm (in the light of the purpose, values, legal, social and economic goals those provisions aim to achieve).
- Swiss courts follow the approach *pluralism of methods*: no hierarchy, combination of methods
- Interpretation in conformity with the constitution and public international law (verfassungskonforme/völkerrechtskonforme Auslegung)

Constitutional Interpretation

- Read the following articles in the Swiss constitution and apply the interpretational methods to understand their meaning
 - Article 10a
 - Article 18
 - Article 36

Thank you
